



File No.: EXP202300922

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 13, 2023, and based on the following:

FACTS

FIRST: On November 13, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202300922, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on November 14, 2023, as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted on December 12, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, indicating the following:

“By means of this document, I file a Recourse for Reconsideration against the Resolution of Archiving of Proceedings with file number EXP202300922, to inform you that I, ..., as the Claimant and as a Member and Partner of the Cycling Club ***CLUB.1, reliably assert the fact I claim regarding the Video Surveillance Sign of the cycling park ***PARK.1 located at ***ADDRESS.1, s/n, as I am aware of the actual situation in which:

- Brain In A Vat Insurance, S.L. is the company that exploits, manages, and resides in this Bikepark as the sole managing entity and that THIS IS THE ONLY entity that truly OWNS the video surveillance camera, which CONTROLS it, which ADMINISTERS ITS IMAGES captured, and which OWNS and PROCESSES the image files of all persons who enter, exit, and/or remain in this facility since July 1, 2022.

- Therefore, and conversely, since July 1, 2022, the Cycling Club ***CLUB.1 does NOT own this camera, does NOT control it, does NOT have access to it, CANNOT either administer or process images, and does NOT own or can own files of the images captured in photographs or videos...”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted:

The recourse for reconsideration reiterates what was stated in the complaint.

The sign provided by the claimant indicates that the data controller is the Club ***CLUB.1, its address, the purpose of the video surveillance, the possibility of exercising the rights recognized in the current regulations, and to whom and at what address.

The fact that BRAIN IN A VAT INSURANCE is responsible for a cycling park does not prevent the data controller of the data resulting from the video surveillance in the cycling park from being the CYCLING CLUB ***CLUB.1.

III

Conclusion

Consequently, in this recourse for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on November 13, 2023, in file EXP202300922.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the

C/ Jorge Juan, 6

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3/3

Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with the documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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